



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 34886554

Date: JAN. 21, 2025

Appeal of Texas Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, an engineer, seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Texas Service Center denied the petition, concluding that the record did not establish that the proposed endeavor was of national importance or that it would be beneficial to waive the requirements of a job offer. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will withdraw the Director's decision and remand the matter for entry of a new decision consistent with the following analysis.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish they are an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act.

An advanced degree is any U.S. academic or professional degree or a foreign equivalent degree above that of a bachelor's degree. A U.S. bachelor's degree or foreign equivalent degree followed by five years of progressive experience in the specialty is the equivalent of a master's degree. If a doctoral degree is customarily required for the specialty, the non-citizen must possess a U.S. doctorate or a foreign equivalent degree. 8 C.F.R. § 204.5(k)(2).

If a petitioner establishes eligibility for the underlying EB-2 classification, they must then demonstrate that they merit a discretionary waiver of the job offer requirement "in the national interest." Section 203(b)(2)(B)(i) of the Act. *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016), provides

the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S. Citizenship and Immigration Services (USCIS) may, as matter of discretion,¹ grant a national interest waiver if the petitioner demonstrates that:

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and
- On balance, waiving the job offer requirement would benefit the United States.

Id.

II. ANALYSIS

The Director determined that the Petitioner, who claims eligibility for the EB-2 classification as an advanced degree professional qualifies for the requested visa classification. However, the Director determined that the record did not establish his eligibility under the first and third prongs of the *Dhanasar* framework, and therefore found him ineligible for a waiver of the job offer requirement.

For the reasons discussed below, we will withdraw the Director’s decision and remand the matter to the Director for entry of a new decision.

A. Member of the Professions Holding an Advance Degree

We withdraw the Director’s determination that the Petitioner qualifies for the requested visa classification.

A petition for an advanced degree professional must include evidence that a petitioner possesses a “United States academic or professional degree or a foreign equivalent degree above that of baccalaureate.” 8 C.F.R. § 204.5(k)(2). In order to show that a petitioner holds a qualifying advanced degree, the petition must be accompanied by “[a]n official academic record showing that the [individual] has a United States advanced degree or a foreign equivalent degree.” 8 C.F.R. § 204.5(k)(3)(i)(A). Moreover, any document in a foreign language must be accompanied by a full English language translation, and a certification from the translator that the English language translation is complete and accurate and that they are competent to translate from the foreign language into English. 8 C.F.R. § 103.2(b)(3).

To demonstrate that he has the claimed degree, the Petitioner submitted a copy of his original master’s degree diploma in Civil Engineering, and the accompanying academic transcript, along with translations for all the aforementioned documents. The certificate of translation printed on the documents states that the translator is a “Certified English Translator,” but does not state that the translator is competent to translate the document from the foreign language into English. As the academic records were not translated in accordance with the plain language requirements of 8 C.F.R. § 103.2(b)(3), we are unable to meaningfully determine whether the documents support the claim.

¹ See *Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Ninth, Eleventh, and D.C. Circuit Courts in concluding that USCIS’ decision to grant or deny a national interest waiver is discretionary in nature).

Therefore, we withdraw the Director's determination and will remand the matter to the Director for further consideration.

B. Well Positioned to Advance the Proposed Endeavor

The second prong shifts the focus from the proposed endeavor to the individual. To determine whether they are well positioned to advance the proposed endeavor, we consider factors including, but not limited to: their education, skills, knowledge and record of success in related or similar efforts; a model or plan for future activities; any progress towards achieving the proposed endeavor; and the interest of potential customers, users, investors, or other relevant entities or individuals. *Matter of Dhanasar*, 26 I&N Dec. at 890.

In the request for evidence (RFE), the Director found that the Petitioner demonstrated that he was well positioned to advance the proposed endeavor based on his past publications, education, and peer reviewed activities. The Director confirmed this finding in the decision. We disagree with the Director's conclusion.

As outlined above, the Petitioner has failed to submit a properly certified translation of his academic record, as required by 8 CFR 103.2(b)(3). As such, the record does not establish whether his education supports his claim to be well positioned.

Moreover, the Petitioner states that for his proposed endeavor he intends "to pursue a position as a postdoctoral researcher," and is "most interested in pursuing this position with the University of South Carolina." Although the Petitioner has been pursuing his doctorate since 2016, the record indicates that he has not yet completed the degree, and it is uncertain when the degree will be completed. Furthermore, he has not provided any evidence that he has any interest from the University of South Carolina or any other institutions. It is unclear how the Petitioner intends to be a postdoctoral researcher without the requisite degree. A petitioner must resolve discrepancies in the record with independent, objective evidence pointing to where the truth lies. *Matter of Ho*, 19 I&N Dec. 582, 591-92 (BIA 1988). The Petitioner further claims that he is "actively engaged in discussions with...various U.S. institutions" indicating a "strong interest in the kind of research [he] specialize[s] in" and hopes to secure an offer of employment soon. However, again he has not presented evidence of discussions regarding his potential future employment, or any other significant evidence of progress towards achieving his proposed endeavor. See generally 6 USCIS Policy Manual F.5(D)(1), <https://www.uscis.gov/policy-manual/volume-6-part-f-chapter-5>. Additionally, he has not presented any evidence showing he has support, such as research funding, from relevant entities claiming interest in his work, or evidence of any institution's interest generally. *Id.* As such, it is unclear how the Petitioner is well-positioned to pursue the proposed endeavor.

Based on the above analysis, we are withdrawing the Director's determination that the Petitioner met prong two and remand the decision for the Director to analyze the evidence to resolve if the Petitioner is well positioned to advance the proposed endeavor.

As the aforementioned reasons are dispositive of the Petitioner's appeal, we decline to reach and hereby reserve remaining arguments concerning eligibility under the other prongs of the *Dhanasar* framework. See *INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (stating that agencies are not required to

make “purely advisory findings” on issues that are unnecessary to the ultimate decision); *see also Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible). On remand, if the Director concludes that the Petitioner does not meet *Dhanasar*’s first or third prong, the decision should address the Petitioner’s arguments and evidence.

ORDER: The Director’s decision is withdrawn. The matter is remanded for the entry of a new decision consistent with the foregoing analysis.